National Aeronautics and
Space Administration
Washington, DC 20546

Procurement Class Deviation

PCD 25-06A

July 11, 2025
March 13, 2026

CLASS DEVIATION FROM FEDERAL ACQUISITION REGULATION (FAR) PART 39 AND NASA FAR SUPPLEMENT (NFS) PART 1839 TO IMPLEMENT THE REVOLUTIONARY FAR OVERHAUL (NASA Case 2025-N008)

PURPOSE: To provide a Class Deviation from the FAR to implement the FAR Council's model deviation text to FAR Part 39, Acquisition of Information and Communication Technology, and deviation to NFS 1839. **Revision A updates NFS 1839 by incorporating subpart 1839.70, Authorization for Radio Frequency Use and clause 1852.239-70, which were previously removed from NFS 1823.71 (See "Guidance" section below for details).**

BACKGROUND: On April 15, 2025, the Executive Order (E.O.) 14275, "Restoring Common Sense to Federal Procurement" was signed. Section 2 of the E.O. establishes the policy that the FAR "should only contain provisions required by statute or essential to sound procurement, and any FAR provisions that do not advance these objectives should be removed." To implement E.O. 14275, the Office of Federal Procurement Policy (OFPP) is leading the **Revolutionary FAR Overhaul (RFO)** initiative. This effort is supported by the Federal Acquisition Regulatory Council (the Council) member agencies (General Services Administration, Department of Defense, NASA), along with other agencies. In line with the E.O., the initiative aims to eliminate unnecessary regulations and policies across all levels of the federal government.

The Office of Management and Budget (OMB) memorandum, M-25-25 issued on May 2, 2025, titled, Overhauling the Federal Acquisition Regulation, provided additional guidance to federal agencies regarding the FAR overhaul.

FAR Streamlining. As part of the RFO, the FAR will be streamlined to include only statutory requirements, while non-statutory content will move to new buying guides, collectively forming the Strategic Acquisition Guidance (SAG). The Council will first issue model deviation guidance by FAR part, followed by formal rulemaking through the notice-and-comment process. Agencies will have 30 days to issue class deviations based on the model text once it is released.

Streamlining Agency Acquisition Supplements. Agencies must streamline their FAR supplements by removing regulations not based on statute or executive orders and aligning with the FAR Council's deviation guidance. Supporting policies must also be updated to reflect these changes. This approach ensures the NFS remains consistent with the streamlined FAR.

FAR Buying Guides and NFS Companion Guide (CG) (coming soon). As the FAR and the NFS are streamlined, helpful non-regulatory content will be moved to new FAR Buying Guides and NFS CG. These guides are intended to offer practical instructions and best practices for implementing effective contracting methods.

RFO Part 39, Acquisition of Information and Communication Technology, establishes contains policies applicable to the acquisition of information and communication technology within the federal government. Burdensome, duplicative, or outdated language and language not required by statute have been removed from FAR Part 39. This plain language version of FAR Part 39 shall be adhered to.

To align with the RFO FAR Part 39, the NFS 1839, Acquisition of Information Technology, is revised to remove non-statutory and outdated language. This deviation implements the revised RFO Part 39 and NFS Part 1839.

GUIDANCE:

(1) Contracting officers (CO) shall follow the RFO Part 39 deviated text instead of FAR Part 39 as codified at 48 Code of Federal Regulations (CFR) Chapter 1, Subchapter F, Part 39. The FAR Council's RFO text is available at FAR Overhaul - Part 39 | Acquisition.GOV **.**

(2) COs shall also follow the NFS Part 1839 deviated text enclosed within this deviation.

Revision A incorporates the following:

- **Subpart 1839.70, Authorization for Radio Frequency Use**
- **1839.7001, Contract clause (formerly 1823.7101) and**
- **Clause 1852.239-70, Authorization for Radio Frequency Use (formerly 1852.223-71)**

Revision A changes are highlighted in the document below.

***ACTION REQUIRED BY CONTRACTING OFFICERS*:** Effective immediately, ensure that new contract actions issued on or after the effective date complies with the policy in the PCD.

EFFECTIVE DATE: This PCD is effective as dated and shall remain in effect until implemented in the FAR and NFS or otherwise rescinded.

***PROVISION AND CLAUSE CHANGES*:** This deviation renders NFS Clause 1852.239-70, Alternate Delivery Points, obsolete. **Rev A incorporates clause 1852.239-70,**